

24STCV27326 24STCV27326

County: los-angeles

Division: Civil Law and Motion

Department: 735

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Case Number: 24STCV27326 Hearing Date: August 31, 2026 Dept: 735

Wesam Desilva v. Chipotle Mexican Grill,
Inc.

Motion to Compel Deposition

On October 18, 2024, Plaintiff Wesam

Desilva filed this civil rights action against Defendant Chipotle Mexican Grill

Inc. Chipotle moves to compel Plaintiff's deposition, which Plaintiff opposes.

DISCUSSION

On August 28, 2025,

Chipotle noticed Plaintiff's deposition to occur on September 24, 2025.

(“Al-Zibdeh Decl., ¶ 2.) The deposition notice was confirmed delivered to

Plaintiff by mail via USPS on September 2, 2025 at 12:26 p.m. (Al-Zibdeh Decl.

¶ 3.) Plaintiff failed to serve an objection to Chipotle's Notice of Deposition

of Plaintiff. Due to Plaintiff's nonappearance, Chipotle was charged fees for

the court reporter. (Al-Zibdeh Decl. ¶ 5.)

On December 5, 2025,

the Court denied Plaintiff's motion for a protective order staying all
discovery.

On December 23, 2025, Chipotle noticed Plaintiff's

deposition for January 9, 2026. (Id., ¶

11.) Plaintiff failed to serve an objection, but emailed on

January 7, 2026 that he would not attend. (Id., ¶

12.)

On January 20, 2026, Chipotle served its third amended deposition notice for Plaintiff's deposition set for February 20, 2026. (Id., ¶ 14.) Plaintiff did not object. Plaintiff failed to respond to Chipotle's emails asking if he would attend and then failed to attend. (Id., ¶¶ 16, 18.)

In opposition, Plaintiff argues that Plaintiff's request for entry of default preceded the answer. However, Plaintiff did not obtain entry of default against Defendant before Defendant filed its answer. Thus, Defendant is not in default.

Plaintiff also argues that Defendant had notice of his medical conflicts before the depositions. However, at the January 8, 2026 status conference, plaintiff agreed he would sit for his deposition after a pending medical procedure. It is now the end of August, and Plaintiff has failed to show he cannot appear for deposition based on a medical condition.

As Plaintiff was properly served with notices of depositions, failed to properly object, and failed to appear, the motion is granted. Plaintiff is ordered to appear for deposition within 20 days of this order.

Sanctions

Chipotle seeks sanctions in the amount of \$3,360 against Plaintiff (14 hours at \$240 an hour). As the motion is granted and Plaintiff did not provide substantial justification for the failure to appear for deposition, the request is granted. Plaintiff is ordered to pay Defendant's counsel \$3,360 in sanctions within 30 days of this order.

CONCLUSION

The court grants Defendant's motion to compel deposition. Plaintiff is ordered to pay Defendant's counsel \$3,360 in sanctions within 30 days of this order.

Defendant shall
give notice.